

Mohd. Shahjad v. U.P. Power Corpn. Ltd.

High Court of Judicature at Allahabad · Division Bench · 19 April 2010 · WRIT - C No. 20273 of 2010 · **Recovery on 4.3.2010 assessment stayed until further orders.**

HEADNOTE

Division Bench granted an interlocutory stay of recovery on a 4 March 2010 theft assessment. The petitioner showed a police final report that theft was not established, withdrawal of the criminal case, and a Supply Code paragraph 8(1)(b)(iv) bar to final assessment. The Court found force in that contention and stayed recovery pending the writ.

FACTUAL SUMMARY

Mohd. Shahjad faced an FIR for theft of electricity. Police submitted a final report that theft was not established. He challenged an order in criminal revision. U.P. Power Corporation Ltd. later withdrew the criminal proceedings and proceeded to final assessment for the alleged theft. Recovery was sought under an order dated 4 March 2010. He contended that, theft not having been established, final assessment was barred by paragraph 8(1)(b)(iv) of the Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::8(1)(b)(iv)

final assessment for theft after police final report

HOLDING

Prima facie, final assessment for theft of electricity cannot proceed where theft was not established (police final report; criminal proceedings withdrawn), in view of paragraph 8(1)(b)(iv) of the Electricity Supply Code, 2005; recovery on the 4 March 2010 assessment is stayed until further orders. ¶ 1

FLAG Order cites paragraph no.8(1)(b)(iv) without quoting the clause; numbering taken as written.

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER PARAGRAPH 8(1)(B)(IV) FINALLY BARS ASSESSMENT AFTER A POLICE FINAL REPORT AND WITHDRAWAL OF THE CRIMINAL CASE

Only an interlocutory stay; writ remains pending. ¶ 1